

TENTATIVE RULINGS

FOR: July 15, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

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Dept. B Zoom

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Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

**“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer.
(Cal. Rules of Court, Rule 1.150(c) & (d))**

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Emiliano Martinez

26PR000080

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON –
LIMITED CONSERVATORSHIP

APPEARANCE REQUIRED

.....
Conservatorship of Jurado, Francisco Jr.

26-61496

REVIEW HEARING

APPEARANCE REQUIRED

.....

Conservatorship of: Lee James El Gal

26-66178

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial hearing in two years, on July 14, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Conservatorship of Ashley Martinez

25PR000128

REVIEW – 1ST YEAR

TENTATIVE RULING: The matter is CONTINUED to August 12, 2026, at 8:30 a.m. in Dept. A to allow the Conservator to file: (1) Notice of Conservatee’s Rights (Judicial Council form GC-341) mailed to relatives of the proposed Conservatee within the second degree; and (2) Care Plan (Judicial Council form GC-355/356). The Clerk is directed to send notice to the parties.

Conservator is encouraged to contact the Court’s Self-Help Center, located on the lower level of the Historic Courthouse at 825 Brown Street, for assistance.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Eduardo Perez Mendoza et al v. Ronkar Deliveries LLC
Eduardo Perez Mendoza et al v. Ronkar Deliveries LLC

23CV001390
24CV002048

STATUS CONFERENCE RE: STATUS OF SUPREME COURT’S DECISION IN *FLOWERS FOOD*

APPEARANCE REQUIRED to discuss a briefing schedule on the remaining issues, raised in the motions to compel arbitration pending in both matters, following the United States

Supreme Court's recent decision in *Flowers Food, Inc., et al. v. Brock* (2026) 146 S.Ct. 1358 (No. 24-935) (*Flowers Food*).

The Court has reviewed Defendants' Status Report in 23CV001390 and Plaintiff's Status Report in 24CV002048. It appears to the Court that the United States Supreme Court's decision in *Flowers Food* confirms Plaintiffs' position, and the Court's inclination as expressed in its March 5, 2026 Minute Order in 24CV002048, at page 6, that Plaintiffs fall under the "engaged in foreign or interstate commerce" exemption under the FAA, section 1, and, therefore, the FAA does not apply to the instant matters. The remaining issues in the pending motions to compel arbitration appear to be Plaintiff's defenses to the validity and enforceability of the arbitration agreement (i.e., the CAA bars arbitration of Plaintiffs' claims, Defendant waived its right to arbitrate, and the agreement is unconscionable).

Based on the foregoing, the Court is inclined to direct further briefing on those remaining issues under the CAA and California law (not the FAA or Federal law). Counsel is required to appear to discuss the scope of, and schedule for, further briefing.

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Nick-O and Sons et al v. Rolando Herrera et al

24CV000022

DEMURRER TO PLAINTIFFS' SECOND AMENDED COMPLAINT FOR FINANCIAL ELDER ABUSE AND RELATED TORTS

TENTATIVE RULING: The demurrer is OVERRULED. Moving Defendants are granted 20 calendar days from entry of the instant ruling to answer the Second Amended Complaint.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

1. Nature of Demurrer

Defendants Rolando Herrera, Herrera Vineyard Leasing Company, LLC, Mi Sueño Winery, Inc., RREVPV, LLC dba Herrera Vineyard Management, Enterprise Wine Company, LLC, Rolando Herrera as Trustee of the Rolando and Lorena Herrera Family Trust, Lorena Herrera, and Lorena Herrera as Trustee of the Rolando and Lorena Herrera Family Trust's

(collectively, Moving Defendants) demur, pursuant to Code of Civil Procedure sections 430.10, subdivisions (b), (d), (e), (f), and, as applicable, (g), 430.30, and 430.50, and California Rules of Court, rule 3.1320, to Plaintiff's Second Amended Complaint for Financial Elder Abuse and Related Torts (SAC).

2. Procedural Background

Plaintiffs Nick-O and Sons, and Enina Orciuoli filed the original Complaint in this action on January 5, 2024. Through the Complaint, they asserted claims against Defendants Rolando Herrera (Mr. Herrera), Herrera Vineyard Leasing Company, LLC (HVLC), and Mi Sueño Winery, Inc. (Mi Sueño and collectively Original Defendants) for Financial Elder Abuse, Rescission of Contract relating to alleged leases of real property, Interference with Contractual Relations, Declaratory Judgment, and Quiet Title.

On April 12, 2024, the Original Defendants demurred to the Complaint on the single grounds that Nick-O and Sons lacked standing to assert the claims. The Court overruled that demurrer by Order After Hearing filed May 24, 2024. Original Defendants filed an Answer to the Complaint on June 5, 2024.

On September 23, 2024, (with leave granted by the Court on September 12, 2024) Plaintiffs Nick-O and Sons (Nick-O), Enina Orciuoli (Ms. Orciuoli), and Angelo Orciuoli and Anthony Orciuoli, as Trustees of the Orciuoli Family Trust dated December 14, 2006 (Trust and collectively Plaintiffs), filed a First Amended Complaint (FAC). The FAC added a new Plaintiff (the Trust), and certain "clarifying" allegations, but asserted the same five claims against the same defendants.

On November 25, 2024, the Original Defendants filed an Answer to the FAC.

On April 14, 2026, (with leave granted by the Court by Minute Order of April 8, 2026) Plaintiffs filed the Second Amended Complaint (SAC). By the SAC, Plaintiffs reasserted the original five claims against the Original Defendants. They also named, as additional defendants, RREVPV, LLC, dba Herrera Vineyard Management (HVM); Enterprise Wine Company, LLC (EWC); Rolando Herrera in his capacity as Trustee of the Rolando and Lorena Herrera Family Trust, Dated February 22, 2007; Lorena Herrera, an individual (Ms. Herrera); Lorena Herrera as Trustee of the Rolando and Lorena Herrera Family Trust, Dated February 22, 2007 (Herrera Family Trust Trustees); First-Citizens Bank & Trust Company, individually and as parent of and successor to Silicon Valley Bank (First-Citizens); and All Persons Unknown, Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the Properties Described in the Complaint Adverse to Plaintiffs' Title or Any Cloud on Plaintiffs' Title Thereto. Plaintiffs also asserted four novel claims sounding in: (1) breach of contract; (2) trespass; (3) conversion; and (4) fraudulent deceit.

Through the Notice of Motion, Moving Defendants clarify that "[t]his demurrer is directed to the SAC as a whole where the SAC uses collective party labels, global incorporation, undifferentiated alter-ego and agency allegations, and property-wide allegations in a manner that

prevents any defendant-specific, plaintiff-specific, property-specific, or instrument specific pleading analysis. It is also directed to each cause of action . . .” (Notice of Motion at 2:11-14.)

B. LEGAL BACKGROUND

A complaint must contain “facts constituting the cause of action.” (Code Civ. Proc., § 425.10, subd. (a)(1).) “The party against whom a complaint . . . has been filed may object, by demurrer . . . to the pleading on any one or more of the following grounds: . . . (b) The person who filed the pleading does not have the legal capacity to sue. . . . (d) There is a defect or misjoinder of parties. (e) The pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible. (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (Code Civ. Proc., § 430.10.)

C. LEGAL ANALYSIS

1. Moving Defendants’ “Global Pleading Defects” Arguments Fail

Moving Defendants first assert that the SAC suffers from a series of “Global Pleading Defects.” (See Support Memo at 4:19, *et. seq.*) These are presented by vague and sweeping generalizations and abstract assertions of pleading defect. As to each, Moving Defendants fail to persuade the Court that the SAC is defective.

A demurrer is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because “[a] demurrer tests only the legal sufficiency of the pleading...the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

Moreover, the general rule is that a complaint is sufficient if it alleges ultimate, as opposed to evidentiary, facts. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) “‘In order to plead a cause of action, the complaint must contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language.’ (Code. Civ. Proc., § 425.10, subd. (a).) . . . What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief. [Citations.]’ [Citation.]’ It has been consistently held that “‘a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action. [Citation.] . . . ‘The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed

information that can be conveniently provided by the plaintiff; less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff. [Citation.]’ . . . There is no need to require specificity in the pleadings because ‘modern discovery procedures necessarily affect the amount of detail that should be required in a pleading.’ [Citation.]’ [Citation.]” (*Doheny Park Terrace Homeowners Association, Inc. v. Truck Insurance Exchange* (2005) 132 Cal.App.4th 1076, 1098-1099 (*Doheny Park*).)

Taken together, the forgoing authority counsels that ultimate facts, properly pled, and facts that may reasonably be inferred therefrom are to be indulged in favor of the complaining party.

The demurring party has the burden of overcoming that indulgence and establishing why the facts alleged do not support a cause of action. To this end, “The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Rules of Court, rule 3.1113, subd. (b).) Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide.” (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 (*Quantum Cooking Concepts*).)

Therefore, it is not sufficient for a demurring party to simply contend that a complaint or cause of action fails to allege sufficient facts and/or that the allegations consist of conclusions of law entirely in the abstract. Rather, it is the demurring party’s responsibility to identify the shortcoming in the pleadings and/or identify the allegations that it contends are conclusions of law.

a. *Plaintiff Standing, Capacity, and Property Interest*

Moving Defendants contend that “Trust claims belong to trustees, partnership claims to the Partnership or its authorized representative, and Mauds [*sic*] claims must distinguish the Trust’s former fee ownership from Enina’s 24.2-acre life estate. [Citations.] The SAC pleads those distinctions, then ignores them.” (Support Memo at 5:1-4.) Moving Defendants provide no further discussion, explanation, and no citation to the SAC in support of the contention.

The Court finds the contention vague, ambiguous, overly abstract. The Court is unable to reasonably construe it in any manner that articulates a specific defect in the pleading of the SAC.

The Court further notes that the Original Defendants asserted, through their demurrer to the Complaint, that the original five claims failed on grounds that Nick-O lacked standing to assert them. This argument was rejected by the Court. (See Order After Hearing filed May 24, 2024.) Pursuant to Code of Civil Procedure section 1008, the Court is “foreclosed from rendering a new determination on the viability of [the subject claims based on the same grounds for demurrer] unless some new facts or circumstances [are] brought to [its] attention.” (*Bennett v. Suncloud* (1997) 56 Cal.App.4th 91, 97.)

b. *Collective Defendant Pleading*

Moving Defendants assert that “[t]he SAC must plead what each defendant did, in what capacity, as to which property, instrument, plaintiff, and injury.” (Support Memo at 5:10-11.)

First, as noted above, “[w]hat is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief. [Citations.]’ [Citation.]’ It has been consistently held that “a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action. [Citation.] . . . ‘The particularity required in pleading facts depends on the extent to which the defendant in fairness needs detailed information that can be conveniently provided by the plaintiff; less particularity is required where the defendant may be assumed to have knowledge of the facts equal to that possessed by the plaintiff. [Citation.]’ . . . There is no need to require specificity in the pleadings because ‘modern discovery procedures necessarily affect the amount of detail that should be required in a pleading.’ [Citation.]’ [Citation.]” (*Doheny Park, supra*, 132 Cal.App.4th at 1098-1099.) None of the authority cited by Moving Defendants suggest otherwise. (See Support Memo at 5:12-14.)

Moreover, the Court finds that, even independent of the agency and alter-ego allegations, the SAC alleges “what each defendant did, in what capacity, as to which property instrument, plaintiff, and injury” in significant factual detail. (See, e.g., *id.* at ¶¶ 5-13, 24-48, and 56-57.) The Court finds nothing improper in Plaintiffs alleging that certain acts were undertaken by “the Herrera Defendants” collectively, or that these defendants, collectively, are liable for certain acts undertaken by one or more individual defendants.

c. *Document Theories*

Moving Defendants next contend that “[t]he SAC repeatedly calls agreements worse, unfair, void, fraudulent, unconscionable, or unsupported by adequate consideration. Those adjectives do not identify a breached provision, statutory trigger, representation, disclosure duty, exceeded lease term, adverse title claim, converted personal property, or causal sequence.” (Support Memo at 5:17-20.) Perhaps. However, the inclusion of such adjectives do not render an otherwise adequately pled claim defective. The Court finds no defect in the SAC based on these allegations.

d. *Alter Ego Allegations*

Moving Defendants argue that “Plaintiffs use alter ego in the wrong direction, attempting to impose Rolando’s alleged acts on non-signatory entities, trustee capacities, and trust-related defendants for every lease, communication, bank document, entry, conversion item, and remedy.” (Support Memo at 6:6-8.)

Moving Defendants fail, however, to cite to or discuss any specific allegations of the SAC that they contend assert alter ego in this “wrong direction.” It is not the Court’s “obligation

to comb the record and the law for factual and legal support that a party has failed to identify or provide.” (*Quantum Cooking Concepts, supra*, 197 Cal.App.4th at 934.)

Moreover, Moving Defendants fail to suggest how allegations of alter ego “in the wrong direction” renders the SAC defective as to any cause of action. “A demurrer does not lie to a portion of a cause of action.” (*PHII, Inc. v. Super. Ct.* (1995) 33 Cal.App.4th 1680, 1682; see also *Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39 [“If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer”].)

Moving Defendants next assert that “[t]his case requires transaction-specific facts showing that each defendant executed, assumed, controlled, participated in, or directly benefited from the specific transaction, not a ‘web’ of related entities treated as one defendant. [Citation.] The SAC recites alter-ego vocabulary but does not tie separateness abuse to any lease, bank document, entry, conversion item, fraud omission, or adverse claim.” (Support Memo at 6:10-14; see also *id.* at 7:12-14 [“Any derivative theory must be pleaded transaction by transaction, defendant by defendant, and claim by claim”], and 7:6-8 [“At minimum, the Court should disregard alter-ego and derivative-liability conclusions when analyzing each cause of action”].)

Again, however, a complaint is generally sufficient if it alleges ultimate, as opposed to evidentiary, facts. (See *Doe v. City of Los Angeles, supra*, 42 Cal.4th at 550.) None of the authority cited by Moving Defendants suggests that alter ego liability is subject to a heightened pleading standard. Rather, the opinion in *Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221 (cited by Moving Defendants) confirms that the general rule of pleading applies to alter ego theories of liability. “Defendants argue that Rutherford failed to allege specific facts to support an alter ego theory, but Rutherford was required to allege only ‘ultimate rather than evidentiary facts.’ [Citation.] Moreover, the ‘less particularity [of pleading] is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff,’ which certainly is the case here.” (*Id.* at 236.)

The Court finds that Plaintiffs have, in the SAC, adequately pled ultimate facts sufficient to support their alter ego theory of liability as it relates to each of the claims asserted through the SAC. (See SAC at ¶¶ 17-19.) Moving Defendants fail to persuade the Court that any further specificity is required. Discovery is available to unearth the factual details that Moving Defendants seek. (*Doheny Park, supra*, 132 Cal.App.4th at 1098-1099.)

e. Agency Allegations

Moving Defendants advance the same arguments as to Plaintiffs’ agency allegations. (See, e.g., Support Memo at 7:16, *et. seq.* [“The SAC’s agency allegations fail for the same reason”].) The arguments fail for the reasons set forth above: none of the authority cited by Moving Defendants suggests that agency liability is subject to a heightened pleading standard; the SAC contains allegations of ultimate fact sufficient to support Plaintiffs’ agency theory of liability as it relates to each of the claims asserted through the SAC; and discovery is available to unearth the factual details sought by Moving Defendants.

2. Moving Defendants Fail to Persuade the Court that Allegations of the SAC Clearly Demonstrate that One or More Claims is Necessarily Time Barred

Although not entirely clear, Moving Defendants appear to argue that certain claims against “the newly added defendants linked to the 2021 lease-replacement transactions” are time barred. (See Support Memo at 8:1-22.)

A general demurrer will lie “where the complaint has included allegations that clearly disclose some defense or bar to recovery.” (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) Where a plaintiff has pled facts that appear to demonstrate an affirmative defense to the claims, they must then “plead around” the defense by alleging facts sufficient to avoid the apparent defense. (See *Gentry v. eBay Inc.* (2002) 99 Cal.App.4th 816, 825.) However, “[a] demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]’ [Citation.]” (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781.)

Moving Defendants entire discussion on the issue, relating to the “2021 lease-replacement transactions” is “[t]hat rule is decisive for the newly added defendants linked to the 2021 lease-replacement transactions. The SAC tries to extend lease-related allegations from Rolando/HVL to Lorena, MSW, HVM/RREVPV, EWC, and trustee-capacity defendants based on 2021 conduct. Plaintiffs must plead timely facts for each defendant including a valid basis for relation back, which is required because amendments adding new defendants ordinarily do not relate back.” (Support Memo at 8:9-13.) Moving Defendants also argue that “[t]he Old Adobe recorded-instrument allegations raise a separate notice problem. The SAC challenges July-August 2022 recorded transactions but treats 2025 title review or subpoena returns as first discovery. Recordation defeats that theory as it prevents plaintiffs from postponing accrual where the facts were publicly recorded and reasonably discoverable earlier.” (Support Memo at 8:17-20.)

The Court finds that the foregoing is insufficient to support Moving Defendants’ demurrer. Moving Defendants fail to cite any allegation in the SAC in support of either argument. Moving Defendants also fail to identify specific claims that they contend are clearly barred. The Court acknowledges allegations in the SAC regarding 2021 leasing transactions and allegations relating to the leasing of the Old Adobe Property. However, as discussed above, it is not the Court’s obligation to pour over the 50-page SAC in an effort to determine whether one or more claim(s) is/are necessarily and clearly barred by one or more unidentified allegation(s). (See *Quantum Cooking Concepts, supra*, 197 Cal.App.4th 934.)

3. Claim-Specific Arguments

a. The SAC Adequately Alleges Elder Abuse

“Financial abuse occurs when a person or entity ‘[t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with

intent to defraud’ or ‘assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud.’ [Citation.]” (*Arace v. Medico Investments, LLC* (2020) 48 Cal.App.5th 977, 982.)

Moving Defendants explicitly acknowledge allegations in the SAC of ultimate facts supporting the foregoing elements. (See Support Memo at 9:3-7.) Moving Defendants complaint that the specific “phrasing” used in the SAC “does not identify the elder-owner, defendant, property, statutory taking or assistance, or elder-abuse injury distinct from contract and title disputes.” (*Id.* at 9:7-9.) This argument simply ignores the scores of paragraphs of the SAC containing such allegations. (See, *e.g.*, SAC at ¶¶ 1-57.)

Moving Defendants next contend that “[t]he undue-influence allegations focus on Rolando and do not plead undue influence, assistance, knowledge, authority, or participation by HVL, MSW, HVM/RREVPV, EWC, Lorena, the Herrera Family Trust, the bank, or Does.” (Support Memo at 9:9-11.)

Again, all that is required is that Plaintiffs allege ultimate facts. The Court finds sufficient allegations of the foregoing in paragraphs 39-51, and 61. As discussed above, the Court finds nothing improper in Plaintiffs alleging acts by defendants collectively. Moving Defendants fail to acknowledge or discuss the allegations of these paragraphs, and therefore fail to persuade the Court that they are insufficient to support the claim or claims for elder abuse.

b. Moving Defendants Fail to Persuade the Court that the Rescission Claim is Insufficiently Pled

Moving Defendants argue that “[t]he SAC . . . seeks rescission of nearly every lease, water-well, rent-assignment, consent, deed-of-trust, recorded-document, fixture, improvement, crop, vine, and related interest. (SAC, pp. 28:5-30:12, 31:8-32:16.) It pleads mistake, duress, menace, fraud, undue influence, and inadequate consideration in grouped form. (SAC, pp. 28:18-30:21.) That is not contract-specific rescission.” (Support Memo at 9:23-26.)

Moving Defendants fail to articulate specifically how the claims for Recission of the various contracts fall short based on the authority cited in this section of their brief. They fail to present authority suggesting that Rescission claims are subject to a heightened pleading standard. The Court finds that those allegations of the SAC cited by Moving Defendants are sufficient to put Moving Defendants on notice regarding the nature of Plaintiffs’ claims. To the extent that Moving Defendants, here, renew their arguments that allegations of acts by collective groups of defendants are improper, they fail to articulate how such collective allegations render these specific claims defective.

c. Moving Defendants Fail to Persuade the Court that the Interference with Contractual Relations Claim is Insufficiently Pled

Moving Defendants assert that Plaintiffs fail to “plead each contract’s material terms, the plaintiff with enforcement rights, the defendant who knew of it, the act meant to induce breach or disruption, the breach, disruption date, or contract-specific damages. Nor does it reconcile the

theory with signed terminations, replacement leases, Lopez rent-assignment documents, and Mauds instruments.” (Support Memo at 10:16-20.)

Moving Defendants fail to articulate specifically how the claims for Interference with Contractual Relations fall short based on the authority cited in this section of their brief. They fail to present authority suggesting that such claims are subject to a heightened pleading standard. The Court finds that the allegations of the SAC are sufficient to put Moving Defendants on notice regarding the nature of Plaintiffs’ claims. To the extent that Moving Defendants, here, renew their arguments that allegations of acts by collective groups of defendants are improper, they fail to articulate how such collective allegations render these specific claims defective.

d. *Moving Defendants Fail to Persuade the Court that the Declaratory Relief Claim is Insufficiently Pled*

Moving Defendants argue that the SAC “does not identify with whom each present controversy exists.” (Support Memo at 11:8-9.) The Court finds that it does. (See SAC at ¶ 102 [“There is an actual controversy among and between the Orciuoli Family on the one hand, and the Defendants on the other as to the present and future validity of these above-described agreements”].)

Moving Defendants fail to articulate specifically how the claims for Declaratory Relief fall short based on the authority cited in this section of their brief. They fail to present authority suggesting that Declaratory Relief claims are subject to a heightened pleading standard. The Court finds that the allegations of the SAC are sufficient to put Moving Defendants on notice regarding the nature of Plaintiffs’ claims. To the extent that Moving Defendants, here, renew their arguments that allegations of acts by collective groups of defendants are improper, they fail to articulate how such collective allegations render these specific claims defective.

e. *Moving Defendants Fail to Persuade the Court that the Quiet Title Claim is Insufficiently Pled*

Moving Defendants argue that “Code of Civil Procedure section 761.020 requires a verified quiet-title complaint to include a property description, plaintiff’s title and basis of title, adverse claims, the date as of which determination is sought, and a prayer for determination of title. (Code Civ. Proc., § 761.020.) The SAC cites those elements but does not plead them with property and party precision. (SAC, pp. 40:8-41:5.)” (Support Memo at 11:18-21 citing SAC at 40:8-41:5.)

As Plaintiffs note in their Opposition, Moving Defendants simply ignore the allegations of paragraphs 20-22, 25-37, and 45-50 of the SAC, all of which are incorporated into the Quiet Title Claim by paragraph 104. Moving Defendants’ failure to acknowledge or address these paragraphs undermines the argument that the Quiet Title Claim is inadequately pled. It is not the Court’s obligation to review the voluminous allegations of these paragraphs in an effort to find support for Moving Defendants’ arguments. (See *Quantum Cooking Concepts, supra*, 197 Cal.App.4th at 934.)

Moving Defendants specifically argue that “For Old Adobe, Plaintiffs must identify the specific recorded adverse claim and defendant asserting it.” (Support Memo at 12:1-2.) They fail to acknowledge or address the many allegations of paragraphs 32, 34, 38, 42, 45, and 49 that relate to these subjects. Moving Defendants specifically argue that “For each vineyard lease, they must identify the leasehold claimant and plaintiff-titleholder.” (Support Memo at 12:2-3.) They fail to acknowledge or address the many allegations of paragraphs 20-37 relating to these subjects.

Moving Defendants assert that “[f]or Mauds, they must distinguish any pre-sale Trust claim from Enina’s alleged post-sale life estate.” (Support Memo at 12:3-4.) The assertion is vague and ambiguous. It is not clear, to the Court, how it supports Moving Defendants’ argument that the Quiet Title Claim is defectively pled. Moreover, Moving Defendants fail to acknowledge or address the many allegations of paragraphs 22, and 35-37 relating to these subjects.

Moving Defendants argue that “although the SAC purports to be verified, Angelo – not claimant Enina – executes the verification, without establishing Enina’s inability to verify or Angelo’s direct personal knowledge. That failure and ineffective hybrid of hearsay and ‘information and belief’ cannot support quiet title.” (Support Memo at 12:6-9.)

“In all cases of a verification of a pleading, the affidavit of the party shall state that the same is true of his own knowledge, except as to the matters which are therein stated on his or her information or belief, and as to those matters that he or she believes it to be true; and where a pleading is verified, it shall be by the affidavit of a party . . .” (Code Civ. Proc., § 446, subd. (a).)

Angelo Orciuoli’s Verification states, “ I am a Co-Trustee of the Orciuoli Family Trust dated December 14, 2006, . . . Plaintiff in the above-entitled action. I am also attorney-in-fact for legal claims and litigation for Enina Orciuoli, a party to this action, and am authorized to make this verification on her behalf. I make this verification on behalf of the Orciuoli Trust, and on behalf of Enina Orciuoli, individually, and as successor-in-interest to decedent Nicola Orciuoli. I have read Plaintiffs’ SECOND AMENDED COMPLAINT FOR FINANCIAL ELDER ABUSE AND RELATED TORTS and know the contents thereof. The same is true and correct of my own personal knowledge, except as to those matters stated on information and belief, and as to those matters, I believe them to be true.” (SAC at p. 51.)

Moving Defendants fail to acknowledge or address the foregoing language of Mr. Orciuoli’s Verification Declaration. It appears to wholly undermine Moving Defendants’ arguments regarding the sufficiency of the verification of the SAC to support the Quiet Title claims.

f. Moving Defendants Fail to Persuade the Court that the Breach of Contract Claim is Insufficiently Pled

Moving Defendants contend that “[t]he SAC alleges that Plaintiffs/predecessors entered leases or related contracts with Rolando, HVL, MSW, HVM/RREVPV, EWC, Rolando as

trustee, Lorena individually, and as trustee, but does not identify which defendant was party to which contract.” (Support Memo at 12:16-18.) The Court finds that the allegations of paragraph 110 are sufficient allegations of the parties to the subject contracts.

Moving Defendants next argue that “The pleading also contradicts attached documents.” (Support Memo at 12:19.) They fail, however, to cite to a single example of such inconsistency.

The Court is unable to meaningfully interpret the remainder of the arguments asserted in this section of Moving Defendants’ Support Memo.

g. Moving Defendants Fail to Persuade the Court that the Breach of Contract Claim is Insufficiently Pled

Moving Defendants appear to suggest that the SAC contains fatally inconsistent allegations regarding ownership of the subject real property. (See Support Memo at 13:9-13.) The Court finds nothing improper in Plaintiffs’ allegations at the cited paragraphs of the SAC, and nothing therein that constitutes a defect in the pleading of their trespass cause of action.

Moving Defendants then contend, without discussion or citation to authority that the SAC must contain additional factual allegations. (See Support Memo at 13:13-17.) Again, however, Moving Defendants fail to suggest that a heightened pleading standard is required for a trespass claim. The Court finds that the SAC contains allegations sufficient to put Moving Defendants on notice regarding the nature of the trespass claims.

h. Moving Defendants Fail to Persuade the Court that the Conversion Claim is Insufficiently Pled

Moving Defendants argue that conversion “generally does not lie for real property, leasehold interests, title interests, contract rights or general economic expectations.” (Support Memo at 24-25.) Perhaps, but Plaintiffs allege that “the Herrera Defendants and their agents . . . removed and/or demolished structures, fixtures, and improvements on the Orciuoli Lands, thereby substantially interfering with the Orciuoli Family’s property rights in said items.” (SAC at ¶ 132.) “All that is necessary as against a general demurrer is to plead facts entitling the plaintiff to some relief.” (*Tristram v. Marques* (1931) 117 Cal.App. 393, 397.)

Moving Defendants then contend, without discussion or citation to authority that the SAC must contain additional factual allegations. (See Support Memo at 14:3-7.) Again, however, Moving Defendants fail to suggest that a heightened pleading standard is required for a trespass claim. The Court finds that the SAC contains allegations sufficient to put Moving Defendants on notice regarding the nature of the trespass claims.

i. Moving Defendants Fail to Persuade the Court that the Fraudulent Concealment Claim is Insufficiently Pled

Moving Defendants contend that the Fraudulent Concealment Claim is insufficient pled because, “[i]t does not identify which defendant concealed which fact, which communication

contained a partial disclosure, who received it, which plaintiff was unaware, what the plaintiff would have done differently, or why the facts were inaccessible given recorded, attached, referenced, and leasehold-financing documents.” (Support Memo at 14:26-15:1.)

The Court finds that the SAC contains allegations that *every defendant* concealed the subject facts from each of the Plaintiffs. (See SAC at 138-139.) While this global allegation, without more, might be insufficient, the Court finds that the significant, detailed allegations set forth in paragraphs 38 and 45-50 provide ample detail to satisfy the heightened pleading standard regarding the fraudulent concealment claim.

D. CONCLUSION

As discussed above, Moving Defendants fail to persuade the Court that Plaintiffs’ allegations are insufficient to state one or more of the purported claims. For this reason, the demurrer is OVERRULED.

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Bright Power, Inc. v. Accelerant National Insurance Company et al 24CV002174

DEFENDANTS BLUE SKY UTILITY LLC AND BLUE SKY UTILITY 2021 IV LLC’S
DEMURRER TO PLAINTIFF BRIGHT POWER, INC.’S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. As the only claim remaining in the action is stayed (see Minute Order of March 19, 2026) the Clerk is directed to change the Case Management Conference, scheduled for November 19, 2026, to a Status Conference re: Stay.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendants Blue Sky Utility LLC and Blue Sky Utility 2021 IV LLC (collectively Moving Defendants) demur, pursuant to California Code of Civil Procedure, sections 430.10, subdivisions (c) and (e), 426.30, subdivision (a), and 430.30, subdivision (a), to the First Amended Complaint (FAC) filed by Plaintiff Bright Power, Inc (BPI).¹ The FAC asserts a single cause for foreclosure on a Mechanic’s Release Bond. While the Notice of Demur asserts that the demurrer is made on three grounds, only one is addressed through the supporting memorandum

¹ All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.

(Support Memo). Therein Moving Defendants argue that BPI is barred from asserting its cause of action here because it constitutes a compulsory counterclaim in a prior action.

Moving Defendants' Request for Judicial Notice is GRANTED. The Court takes judicial notice of each of the Exhibits thereto. However, the Court does not take judicial notice of Exhibits 1-3, or 5 for the truth of matters asserted therein. As to Exhibit 6, "Judicial notice may be taken of 'the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face.'" (*Linda Vista Vill. San Diego Homeowners Assn., Inc. v. Tecolote Invs., LLC* (2015) 234 Cal.App.4th 166, 184 (*Linda Vista Village*); see also *Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42 (*Green Foothills*) [held: trial court properly took judicial notice of the filing of a Notice of Determination].)

B. LEGAL BACKGROUND

A general demurrer will lie "where the complaint has included allegations that clearly disclose some defense or bar to recovery." (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) Where a plaintiff has pled facts that appear to demonstrate an affirmative defense to the claims, they must then "plead around" the defense by alleging facts sufficient to avoid the apparent defense. (See *Gentry v. eBay Inc.* (2002) 99 Cal.App.4th 816, 825.)

With exceptions having no apparent relevance here, "if a party against whom a complaint has been filed and served fails to allege in a cross-complaint any related cause of action which (at the time of serving his answer to the complaint) he has against the plaintiff, such party may not thereafter in any other action assert against the plaintiff the related cause of action not pleaded." (§ 426.30, subd. (a).) For purposes of applying the statute, " '[r]elated cause of action' means a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint." (§ 426.10, subd. (c).) "Section 426.30 is an affirmative defense that completely disposes of any cause of action to which it applies." (*Chao Fu, Inc. v. Chen* (2012) 206 Cal.App.4th 48, 56.) "The statute is to be liberally construed to advance its purpose" which is the avoidance of multiplicity of actions by "provid[ing] for the settlement, in a single action, of all conflicting claims between the parties arising out of the same transaction." (*Heshejin v. Rostami* (2020) 54 Cal.App.5th 984, 993.)

Pursuant to the allegations of the FAC, the subject lien is security for payment for work that BPI performed for Moving Defendants. "Plaintiff is a licensed contractor who performed a solar energy project at the subject property pursuant to a written contract with Blue Sky. Plaintiff completed the contract, was not paid and provided proper notices to said Defendants but said Defendants failed and refused to pay as required and requested." (FAC at ¶ 5.)

Moving Defendants assert that this "solar energy project" and the "written contract" relating thereto are the same as those, identified as the "Montebello Project," at issue in Moving

Defendant Blue Sky Utility 2021 IV LLC's Fifteenth Cause of Action for Breach of Contract asserted against BPI through the Complaint in *Blue Sky Utility LLC, et al. v. Bright Power Inc.*, assigned Case No. 24CV001768 pending before this Court (The 1768 Action). Not only does BPI fail to deny the assertion, it appears to concede the point. (See Opposition at 2:13 ["This case also involves the Montebello project"].)

Based on a review of the FAC, the Complaint in the 1768 Action, and the parties' respective briefs on the instant Motion, the Court finds that BPI's cause of action asserted against Moving Defendants through the FAC arises out of the same transaction as the Fifteenth Cause of Action asserted against BPI in the 1768 Action. Because the 1768 Action was filed earlier, the instant action against the Moving Defendants is barred by Section 426.30, subd. (a).

Based on the foregoing the Demurrer is SUSTAINED.

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (*Ibid.*)

In light of BPI's concessions (in the Opposition) regarding the nature of its claims in the instant action, it does not appear to the Court that there is any reasonable possibility that BPI can amend the FAC to "plead around" the bar of Section 426.30, subdivision (a). BPI not only fails to suggest how it might do so, it does not request leave to amend through its Opposition. The Demurrer is, therefore, SUSTAINED WITHOUT LEAVE TO AMEND.

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Alexander Perry v. County of Napa et al

25CV000598

APPLICATION FOR AN ORDER CONTINUING THE TRIAL DATE

APPEARANCE REQUIRED: The Application is GRANTED. The Trial Management Conference, currently set for August 6, 2026, and the Trial, currently set for August 10, 2026, are hereby VACATED. The parties are directed to appear at the hearing to select new dates.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant County of Napa applies, pursuant to California Rules of Court rules 3.1202, subdivision (c) and 3.1332, subdivisions (c) and (d), for an order continuing the trial date and resetting all trial-related dates and deadlines to run from the continued trial date.

The Court has a statutory “responsibility to eliminate delay in the progress and ultimate resolution of litigation, to assume and maintain control over the pace of litigation, to actively manage the processing of litigation from commencement to disposition, and to compel attorneys and litigants to prepare and resolve all litigation without delay, from the filing of the first document invoking court jurisdiction to final disposition of the action.” (Govt. Code, § 68607.) In fulfilling these responsibilities, the Court “shall...[a]dopt and utilize a firm, consistent policy against continuances, to the maximum extent possible and reasonable, in all stages of the litigation.” (*Id.* at subd. (g).) Therefore, a party moving for a continuance must show good cause requiring the continuance. (*Ibid.*)

“To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain.” (Cal. Rules of Court, rule 3.1332, subd. (a).) Continuances are disfavored and the Court may only grant a continuance “on an affirmative showing of good cause *requiring* the continuance.” (See *id.* at subd. (c). Emphasis added.)

Defendant presents evidence that an essential witness is unavailable for trial as currently scheduled, and that, despite the parties’ diligence, significant discovery remains to be completed. In light of the fact that the trial has not previously been continued, the Court finds good cause requiring the continuance.

Based on the foregoing, the motion is GRANTED. The parties shall appear prepared to select new trial and related dates.

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Rore Manufacturing, Inc. v. Karen Coffy

26CV000810

DEFENDANT’S SPECIAL MOTION TO STRIKE SLAPP SUIT AND FOR ATTORNEY
FEES AND COSTS

TENTATIVE RULING: The Clerk is directed to STRIKE the First Amended Complaint filed July 6, 2026, from the Court’s files. Hearing on the instant Motion is CONTINUED to August 6, 2026, at 8:30 a.m. in Dept. A. Plaintiff Rore Manufacturing, Inc. is granted leave to serve and file, no later than July 24, 2026, a Separate Statement as described below. Defendant Karen Scheuner is granted leave to serve and file, no later than July 30, 2026, a Responsive Separate Statement. To be clear, neither party is granted leave, by this order, to file any additional briefing or evidence in relation to the instant motion.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

1. Nature of Motion

Defendant Karen Scheuner (erroneously sued as Karen Coffy) specially moves, pursuant to California Code of Civil Procedure, section 425.16, for an order to strike the Complaint filed by Plaintiff RORE Manufacturing Inc., dba, Roof and Realm (RORE) in its entirety on grounds that the Complaint is a strategic lawsuit against public policy (SLAPP).

While not addressed in the Notice of Motion, Ms. Scheuner also contends, through the supporting memorandum (Support Memo), that RORE's claims are barred by the statute of limitations and/or the single publication rule of Civil Code section 3425.3. RORE addresses these arguments through its Opposition.

"A general demurrer will lie 'where the complaint has included allegations that clearly disclose some defense or bar to recovery.' [Citation.]." (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) And "a motion to strike is generally used to reach defects in a pleading which are not subject to demurrer. A motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is a ground for general demurrer." (*Pierson v. Sharp Mem'l Hosp.* (1989) 216 Cal.App.3d 340, 342 (*Pierson*); see also (Weil & Brown, Cal. Practice Guide – Civ. Pro. Before Trial (Rutter 2026) CH. 7(I)-B, § 7:156 ["Motions to strike can be used to reach defects in or objections to pleadings *that are not challengeable by demurrer*"], and *Allerton v. King* (1929) 96 Cal.App.230, 234 [held: A motion to strike cannot be made to serve the purpose of a special demurrer].)

However, the Court may construe a motion to strike for failure to state a claim as a motion for judgment on the pleadings. [See *Pierson, supra*, 216 Cal.App.3d at 342-343.] The Court, therefore, construes Ms. Scheuner's Motion to Strike on grounds that RORE's claims are barred by the statute of limitations and/or the single publication rule as a Motion for Judgment on the Pleadings.

Finally, because a plaintiff has no right to amend a complaint following a defendant's showing in support of an anti-SLAPP Motion (see *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1074 (*Simmons*)) the Court defers analysis of the Motion for Judgment on the Pleadings until after resolution of Ms. Scheuner's anti-SLAPP Motion.

2. The Clerk is Ordered to Strike the First Amended Complaint Filed July 6, 2026

Without leave of Court, and after the time for opposing the instant Motion (indeed after filing its Opposition to the instant Motion), RORE filed a First Amended Complaint (FAC).

Generally, "[a] party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is

filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.” (Code Civ. Proc., § 472 (Section 472).)

While the instant motion is captioned a “Motion to Strike,” as discussed above, the arguments presented are not a proper subject of a common motion to strike. Thus, there is some question whether RORE’s failure to file the FAC prior to the time for filing its opposition to the instant motion deprives it of the rights conferred by Section 472.

The Court is not required to answer that question, however, because the instant Motion is, in part, an unequivocal Special Motion to Strike a SLAPP. For this reason, as of Defendant’s filing of the instant motion, Plaintiff was without right to amend the Complaint. (See *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1294 [“Requiring the trial court to analyze the amended claims under section 425.16 simply because the claims were amended before the court ruled on the first motion to strike would cause all of the evils identified in *Simmons* and would undermine the legislative policy of early evaluation and expeditious resolution of claims arising from protected activity”]; see also *Simmons, supra*, 92 Cal.App.4th at 1074 [held: once a defendant makes a prima facie showing in support of an anti-SLAPP Motion, plaintiff has no right to amend the subject complaint].)

Based on the foregoing, the Court finds that the FAC was not filed in conformity with the laws of this state. The Clerk is, therefore, directed to STRIKE the FAC from the Court’s files. (Code Civ. Proc., § 436, subd. (b).)

3. Nature of Claims

It is undisputed that RORE is in the business of designing, fabricating, and delivering so-called accessory dwelling units (ADUs) to end use customers. (See Complaint at ¶ 1.) Ms. Scheuner is a former customer of RORE’s. The gravamen of the Complaint is that RORE has suffered damage as a result of: (1) alleged publications, by Ms. Scheuner, “of multiple damaging and untrue statements about RORE to a Facebook users group dedicated to discussions regarding on social media regarding her purchase and installation of the Home” (Complaint at ¶ 7); and (2) alleged communications, by Ms. Scheuner, of defamatory information (*id.* at ¶ 9.)

B. SPECIAL MOTION TO STRIKE SLAPP

1. Legal Background

“The special motion to strike established in section 425.16 may be used to attack a cause of action if (1) the cause of action arises from ‘any act [by the defendant] in furtherance of the person’s right of petition or free speech under the United States or California Constitution,’ and (2) the defendant was exercising his or her right of free speech ‘in connection with a public issue.’ (Citation.) If the moving defendant establishes those two elements, the burden shifts to the plaintiff to establish there is a probability he or she will prevail on the cause of action.” (*Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1511.) “The anti-SLAPP statute’s definitional focus is not the form of the plaintiff’s cause of action but, rather, the defendant’s activity that

gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92 (*Navellier*).)

2. Legal Analysis

a. *The Activity Giving Rise to RORE’s Claim(s) is Protected Activity Under the Statute*

As defined by the anti-SLAPP statute, protected activity includes “any written . . . statement . . . made in a place open to the public or a public forum in connection with an issue of public interest.” (Code Civ. Proc. § 425.16, subd. (e)(3) (Section 425.16).)

The alleged activities that give rise to the asserted liability, and that support RORE’s prayer for declaratory relief, are statements relating to RORE’s business of designing, fabricating and delivering ADUs. (See Complaint at ¶ 7, 11, and 17.) The statements were either published on social media or communicated directly to another of RORE’s customers. (See Complaint at ¶¶ 7, 9-12, 17, 23, 38, and 36.) As RORE concedes, the posts giving rise to its claims were all published “in the private Facebook group ‘How to ADU.’” (Opposition at 2:6-8.) Ms. Scheuner presents evidence that “The Facebook Group . . . has approximately 160,000 members The Facebook Group is purposed for homeowners and ADU-builders ‘to help each other and share questions and answers about building Accessory Dwelling Units in California . . .’” (See Declaration of Karen Scheuner at ¶ 12.) RORE does not dispute or rebut this evidence through its Opposition.

“[R]eviews posted to an Internet website meet [Section 425.16, subd. (e)(3)’s] definition of protected activity.” (*Abir Cohen Treyzon Salo, LLP v. Lahiji* (2019) 40 Cal.App.5th 882, 887-88 (*Lahiji*) [upholding trial court finding that comments posted to a website by a former client regarding quality of a law firm’s services were protected activity]; see also *Chaker v. Mateo* (2012) 209 Cal.App.4th 1138, 1146 (*Chaker*) [“statements posted to the Ripoff Report Web site about [Plaintiff’s] character and business practices plainly fall within in the rubric of consumer information about [Plaintiff’s] business and were intended to serve as a warning to consumers about his trustworthiness”].)

“The public interest requirement of section 425.16, subdivision (e)(3) must be “‘construed broadly” so as to encourage participation by all segments of our society in vigorous public debate related to issues of public interest.’ [Citation.] The Legislature inserted the ‘broad construction’ provision out of concern that judicial decisions were construing that element of the statute too narrowly.” (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 23-24 (*Gilbert*) [held: a public website created by Plaintiff dedicated to the pros and cons of plastic surgery constitutes protected activity under Section 425.16, subdivision (e)(3) where “the Web site was not limited to attacking [plaintiff] but contributed to the general debate over the pros and cons of undergoing cosmetic surgery”].)

The Court finds that, particularly since the passage of SB 477 in 2024, legislation aimed at reducing the local zoning and planning hurdles to the construction of ADUs, subjects relating to the construction thereof are issues of significant public interest.

Based on the foregoing, the Court finds that the statements – allegedly made by Ms. Scheuner – giving rise to RORE’s claim(s) are protected activity pursuant to Section 425.16, subdivision (e)(3).

RORE argues that Ms. Scheuner’s statements are not protected under the holding in *Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624 (*Yang*). In *Yang* a celebrity jeweler posted statements regarding his dissatisfaction with a cake ordered from a local bakery to his social media feed with some 1.5 million followers. (See *id.* at 626-27.) In concluding that Defendant had not made the comments “in connection with an issue of ‘public interest,’” the *Yang* court found that “Yang’s statements did not seek public discussion of anything. They aimed to whip up a crowd for vengeful retribution. They were an unprotected effort ‘to gather ammunition’ in his spat with Big Sugar. The customer was complaining about a cake order. He did not like the cake and he did not like the service. Those were not issues of public interest.” (*Id.* at 632-633.)

Here, by contrast, the alleged statements were made on a social media site dedicated to a matter of public interest, discussion of ADUs in California – the precise business for which RORE holds itself out to the public. The Court finds that these facts distinguish the instant case from *Yang*, and bring it in line with the holdings in *Lahiji* and *Chaker*, cited above.

b. *Given the Complexity of the Claim(s) Alleged, the Court Invites the Parties to Submit Separate Statements*

“[I]n order to establish the requisite probability of prevailing (§ 425.16, subd. (b)(1)), the plaintiff need only have ‘stated and substantiated a legally sufficient claim.’ [Citations.] ‘Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’ [Citations.]’ (*Navellier, supra*, 29 Cal.4th at 88-89.) “To show a probability of prevailing for purposes of section 425.16, a plaintiff must make a prima facie showing of facts which would, if proved at trial, support a judgment in plaintiff’s favor.” (*Alpha & Omega Dev., LP v. Whillock Contracting, Inc.* (2011) 200 Cal.App.4th 656, 663.) Because the burden on the plaintiff is similar to the standard used in determining motions for summary judgment. “[t]he showing must be made through ‘competent and admissible evidence.’ [Citations.] Thus, declarations that lack foundation or personal knowledge, or that are argumentative, speculative, impermissible opinion, hearsay, or conclusory are to be disregarded.” (*Gilbert, supra*, 147 Cal.App.4th at 26.)

While the Complaint purports to assert four causes of action, “[t]he violation of one primary right constitutes a single cause of action, though it may entitle the injured party to many forms of relief, and the relief is not to be confounded with the cause of action, one not being determinative of the other.” (*Wulfjen v. Dolton* (1944) 24 Cal.2d 891, 895-96.) “We explained in *Crowley v. Katleman* (1994) 8 Cal.4th 666, 681: ‘[A] “cause of action” is comprised of a “primary right” of the plaintiff, a corresponding “primary duty” of the defendant, and a wrongful act by the defendant constituting a breach of that duty. [Citation.] The most salient characteristic of a primary right is that it is indivisible: the violation of a single primary right gives rise to but a

single cause of action. [Citation.]’ Although ‘the phrase “causes of action” is often used indiscriminately . . . to mean counts which state differently the same cause of action . . . ’ (*Eichler Homes of San Mateo, Inc. v. Super. Ct.* (1961) 55 Cal.2d 845, 847–848), its more precise meaning ‘is the right to obtain redress for a harm suffered’ (*Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 798). “Even where there are multiple legal theories upon which recovery might be predicated, one injury gives rise to only one claim for relief.” (*Ibid.*, quoting *Slater v. Blackwood* (1975) 15 Cal.3d 791, 795, italics added.)” (*Hayes v. County of San Diego* (2013) 57 Cal.4th 622, 630-631.)

RORE asserts its counts under theories of Defamation – Trade Libel / Business Disparagement, and Intentional and Negligent Interference with Prospective Economic Relations. RORE also seeks Declaratory Relief regarding Ms. Scheuner’s right to continue publishing and communicating negative content about RORE.

RORE further represents that its first count is pled under a Trade Libel theory for which a two-year statute of limitations applies, and not a traditional Defamation theory, for which a one-year limitations period applies. (See Opposition at 3:14-256.) “With respect to the choice between the one-year period of section 340, subdivision (3), and the two-year period of section 339, subdivision 1, ‘[the] principle of selection which has emerged is that the one-year period applies to all alleged infringements of personal rights, whereas the two-year period applies only to alleged infringements of property rights. [Citations.]” (*Guess, Inc. v. Super. Ct.* (1986) 176 Cal.App.3d 473, 478.) “Whereas defamation concerns injury to the reputation of a person or business, trade libel involves false disparagement of the quality of goods or services.” (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 340.)

Unfortunately, RORE, through the Opposition fails to identify or discuss the elements of any of its counts. Similarly, RORE fails to cite to the Complaint or to explain where each element of its counts is alleged in order to “demonstrate that the complaint is . . . legally sufficient . . .” (*Navellier, supra*, 29 Cal.4th at 88-89.) More importantly, while RORE submits evidence that it contends is sufficient to make a *prima facie* showing on its counts, it fails to discuss how each element is satisfied based on pin-citation to specific evidence. Rather, RORE simply points to a host of statements posted to the Facebook group, contends they were made by Ms. Scheuner based on citation to *other* statements, and then points to statements allegedly made by third parties to the litigation to show damages. Based on the foregoing, the Court finds that RORE’s citation to its evidence is insufficient to permit the Court to conclude that there is a reasonable probability that it will prevail on its claim(s).

The instant analysis is rendered significantly complex by a number of aspects of the claims and the evidence: (1) the number of elements for each of the counts pled in the Complaint (See CACI Nos. 1731, 2202, and 2204); (2) the distinction between defamation and trade libel (discussed above); (3) the number of statements attributed to “Anonymous” in the screenshot(s) attached as Exhibit G to the Declaration of Fatima Shahid; (4) the apparent fact that more than one person was responsible for posts attributed to “Anonymous” in the screen shot submitted as evidence; and (5) the requirement that a plaintiff make a *prima facie* showing that its damages were caused by the libelous statements / wrongful acts.

The Court specifically notes that a significant number of the posted statements relied upon by RORE appear to support a claim for defamation rather than trade libel; that is, they appear to “concern[] injury to the reputation of a person or business,” rather than “false disparagement of the quality of goods or services.” (*Mann v. Quality Old Time Service, Inc.*, *supra*, 139 Cal.App.4th at 340.) In this context, RORE fails to provide any discussion regarding how its evidence of damages relates to any individual statement allegedly made by Ms. Scheuner. This direct causation appears to be necessary, however, in light of RORE’s representations that it is not proceeding under a defamation theory of liability, and the defamatory nature of a number of the statements that it relies on.

It is not the Court’s obligation to comb through the evidence presented and attempt to deduce how it supports the counts asserted vis-à-vis the allegations in the Complaint. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

However, the Court is mindful of the consequence of ruling in favor of Ms. Scheuner on the instant motion in light of the caselaw providing that once a defendant makes a prima facie showing in support of an anti-SLAPP Motion, plaintiff has no right to amend the subject complaint to attempt to state a good cause of action. (See *Simmons v. Allstate Ins. Co.*, *supra*, 92 Cal.App.4th 1068, 1074.)

In this context, the Court notes the holding in *Parkview Villas Assn, Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197 (*Parkview Villas*) in the context of summary judgment. “[I]n the absence of extraordinary circumstances . . . a trial court faced with an opposing party’s defective separate statement plainly indicating which proposed material facts are disputed and including at least general references to the evidence supporting its position does not have the discretion to enter a judgment against that party solely as a result of that party’s failure to explain the nature of the dispute and to provide sufficiently specific citations to the evidence supporting its position.” (*Id.* at 1214-1215.) In light of the *Parkview Villas* holding and in an abundance of respect for the general policy that the Court seek to avoid entering judgment against a plaintiff on a curable procedural defect, the Court feels compelled to grant RORE leave to attempt to cure the deficiencies in its presentation of argument and citation to evidence on file with the Court. However, the leave granted hereby is strictly limited as follows.

RORE may, no later than July 24, 2026, file and serve a separate statement in support of its Opposition to the instant Motion. RORE is encouraged to consider the formatting requirements of Rules of Court, rule 3.1350, but need not specifically comply therewith. RORE need not include undisputed material facts. However, RORE should organize the statement by count (cause of action) and must identify each element of each count/legal theory advanced. For each such element, RORE should identify, by pin-cite, supporting allegations of the Complaint *and* the evidence that RORE contends makes a prima facie showing. Where two or more counts have one or more elements in common, RORE need not “copy and paste” the same citations and

discussions into subsequent sections of the statement, but may instead simply refer to them by, for example, “See Discussion at P:L-L, above.”

Ms. Scheuner may, no later than July 30, 2026, file and serve a responsive separate statement. Because the Court does not weigh the evidence on an anti-SLAPP Motion, the responsive separate statement should be limited to citing evidence, if any, that Ms. Scheuner contends negates RORE’s purported showing as a matter of law.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Jo Ellen Francis

25PR000061

FIRST ACCOUNT AND REPORT OF STATUS; PETITION TO CONTINUE
ADMINISTRATION OF ESTATE; AND FOR APPOINTMENT OF SUCCESSOR TRUSTEE
TO DECEDENT’S TRUST

TENTATIVE RULING: The Petition is GRANTED. The matter is set for a Status Hearing Re: Final Distribution on July 15, 2027, at 8:30 a.m. in Dept. B.

The petition to appoint successor trustee is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

**Integon National Insurance Company v. Andrew Madison
Mackenzie-Davis et al**

26CV000413

DEFENDANT BRYSON HALL’S DEMURRER TO PLAINTIFF’S COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED. Hall is granted 10 days’ leave to answer the Complaint. (See Rules of Court, rule 3.1320(g).)

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Defendant Bryson Hall (“Hall”) demurs, pursuant to Code of Civil Procedure section 430.10, subdivisions (e), (f) and (g),² to Plaintiff Integon National Insurance Company’s (“Plaintiff”) Complaint asserting two causes of action for Declaratory Relief. The demurrer is brought on the grounds that (1) the Complaint is uncertain, ambiguous, and unintelligible and fails to attach the written instruments upon which the action is founded, and (2) the second cause of action fails to state facts sufficient to constitute a cause of action.

B. LEGAL STANDARD

A complaint must contain “facts constituting the cause of action.” (§ 425.10, subd. (a)(1).) The party against whom a complaint has been filed may object, by demurrer, on the grounds that “[t]he pleading does not state facts sufficient to constitute a cause of action,” “[t]he pleading is uncertain,” or “[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.” (§ 430.10, subds. (e)-(g).) A demurrer is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) The Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because “[a] demurrer tests only the legal sufficiency of the pleading . . . the question of plaintiff’s ability to prove the [] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. DISCUSSION

1. The Complaint is not Uncertain

Hall argues the Complaint is uncertain on four grounds. The first two grounds rely on material outside the four corners of the Complaint. Hall made no request or supporting argument for judicial notice of any of the facts outside the four corners of the Complaint. For both of these reasons, Hall’s first two grounds fail. (*Blank, supra*, 39 Cal.3d at 318 [a demurrer can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable].)

The third ground argues that the Complaint is uncertain for omitting the legal basis for Hall’s joinder. However, based on Hall’s comprehensive argument as to the purportedly relevant facts connecting him to the matter, and the allegations regarding Hall in Paragraphs 4, 9, 11, the Court does not agree with Hall’s contention that “[he] cannot understand what is being asserted against him or frame a meaningful response.” (Mem., 7:10-11.)

The fourth ground is purely procedural, arguing that the Complaint contains defective numbering of paragraphs because, the second cause of action because with paragraph number 1,

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

instead of continuing with paragraph number 17. This ground unnecessarily places form over substance and does not render the Complaint unintelligible.

It is well-established that a demurrer for uncertainty is disfavored and may only be sustained where the allegations render the complaint so incomprehensible that a defendant cannot reasonably respond. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.) The Court finds the Complaint to be entirely comprehensible such that Hall can reasonably respond.

Based on the foregoing, the demurrer brought on uncertainty grounds is OVERRULED.

2. The Complaint Need Only Plead the Legal Effect of the Subject Insurance Documents

Hall next argues that the Complaint fails to either attached the insurance documents at issue or plead the terms of the documents verbatim required by *Miles v. Deutsche Bank Nat'l Trust Co.* (2015) 236 Cal.App.4th 394, 401-02. In Opposition, Plaintiff argues that, under *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198, a plaintiff may plead the legal effect of the policy language rather than attach the documents or allege the terms verbatim. Plaintiff argues that it has complied with that premise by sufficiently alleging the legal effect of the subject terms of the insurance documents. (Compl., ¶¶ 8, 10.)

The Court finds that the authority relied upon by Hall (*Miles*) recognizes the same premise as in *Construction Protective Services, Inc.* That is, a plaintiff may plead the legal effect of the contract rather than its precise language. (See *Miles, supra*, 236 Cal.App.4th at 402; see also Weil & Brown, et al., Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2026), Ch. 6-B, § 6:132.) The Court further finds that the Complaint sufficiently pleads the legal effect, as relevant, of the insurance documents.

Thus, the demurrer brought on the ground that the Complaint fails to attach the insurance documents or allege the terms verbatim is OVERRULED.

3. The Complaint Alleges Facts Sufficient to Constitute a Declaratory Relief Cause of Action as to Plaintiff's Duty to Defend

Finally, Hall argues that the second cause of action for declaratory relief as to Plaintiff's duty to defend fails to state a cause of action because it relies upon the same facts as alleged in support of the first cause of action for declaratory relief as to Plaintiff's duty to indemnify. Plaintiff argues that the duty to defend declaratory relief claim omits four necessary facts, three of which concern a separate litigation outside the four corners of the Complaint (discussed under Section (C)(1) *supra*) and the fourth concerns the same issue raised under Section (C)(2) *supra*. For the reasons explained above, the Complaint does not fail for omission of these facts.

In Opposition, Plaintiff argues that the same ultimate facts support both its first and second causes of action. Plaintiff argues that the only difference between the legal standards for a duty to indemnify (at issue on the first cause of action) and duty to defend (at issue on the second

cause of action) is that a duty to indemnify involves whether there is actual coverage and a duty to defend involves whether there is a potential for coverage. Where there is no potential for coverage, there is necessarily no actual coverage, and therefore it is reasonable that the same facts that support the duty to defend issue also support the duty to indemnify issue.

The Court finds Plaintiff's argument reasonable, and Hall filed nothing by way of a Reply. Thus, the demurrer on the ground that the second cause of action fails to state a cause of action is **OVERRULED**.

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Capital One, N.A. v. Sharon Salomon

26CV000771

MOTION TO QUASH SERVICE

TENTATIVE RULING: The motion is GRANTED.

A. PROCEDURAL MATTERS

Specially-appearing defendant Sharon Salomon ("Defendant") moves, pursuant to Code of Civil Procedure section 418.10, subdivision (a)(1),³ for an order quashing Capital One's ("Plaintiff") purported service of the summons and complaint on Defendant. Defendant so moves on the grounds that the Court lacks jurisdiction over Defendant because the process server left the summons and complaint at Defendant's residence on May 15, 2026 without the knowledge or presence of Defendant, failing to comply with personal service requirements.

B. LEGAL STANDARD

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." (§ 418.10, subd. (a)(1).)

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove ... the facts requisite to an effective service." (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413. Internal quotes omitted.) A proof of service by a registered process server establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return. (Evid. Code, § 647; see also *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 [filing of proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service].)

C. DISCUSSION

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

The Proof of Service (“POS”) of the summons and complaint, filed June 16, 2026, indicates that the registered process server personally served copies of the documents on “Sharon Salomon” at 740 Chiles Avenue, St. Helena, CA, on May 15, 2026, at 10:18 a.m. The Proof of Service states: “I delivered the documents to Sharon Salomon with identity confirmed by subject saying yes when named. The individual tried to refuse service by refusing to take documents and just said no (documents left, seen by subject). The individual appeared to be a gray-haired white female contact over 65 years of age, 5’6”-5’8” tall and weighing 140-160 lbs. she came out to get the mail.... Pretty much just ignored more. I followed her back to the door and left the documents.” (POS, ¶ 5(a).)

The caption of Defendant’s motion confirms that 740 Chiles Avenue, St. Helena, CA is her address of record. Defendant presents evidence that “a young man saw [her] outside [her] house at [her] mailbox talking to the female mail carrier and called [her] name”; Defendant “did not respond”; He did not identify himself or hand [her] anything and asked whether Defendant moved; “He left nothing, went back to his car.” (Declaration of Sharon Salomon (“Salomon Decl.”) at ¶ 2.) “Some time later on the raised flower bed in my front yard was a copy of the Summons and Complaint.” (*Id.*, ¶ 3.)

“As long as the process server identifies himself or herself and tells the reluctant defendant that he or she is being served with process, and leaves the papers as close as possible to the defendant, service is valid notwithstanding the defendant’s refusal to accept.” (Weil & Brown, *et al.*, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2026), Ch. 4-D, § 4:187, citing *Trujillo v. Trujillo* (1945) 71 Cal.App.2d 257, 260.)

The POS states facts satisfying *Trujillo*. Defendant’s Declaration disputes that the process server identified himself or left the papers in her plain view. The motion, therefore, comes down to a credibility determination. Given that the POS contains contradictory information—*compare* Defendant confirmed her identity by “saying yes when named” *with* “she came out to get the mail [and] Pretty much just ignored me”—the Court resolves the parties’ conflict of evidence in Defendant’s favor. Thus, the Court finds that Defendant has overcome the rebuttable presumption of effective service. Because Defendant shows that copies of the documents were not left in her plain sight, the Court does not find that Defendant was properly served, via personal or substituted service, with the summons and complaint. (Salomon Decl., ¶ 4; §§ 415.10, 415.20; see also *Stafford v. Mach* (1998) 64 Cal.App.4th 1174, 1183 [leaving the papers with someone who does not reveal their identity and thereafter mailing a copy of the papers is sufficient substituted service, where the POS includes an accurate description of defendant].)

Based on the foregoing, the Motion is GRANTED.